

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the Interstate Transmission System	))	Docket No.	RM26-4-000
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COMMENTS OF CHEVRON U.S.A., INC.

In accordance with the Federal Energy Regulatory Commission’s (Commission) October 27, 2025, *Notice Inviting Comments* and its November 7, *Notice of Extension of Time*, Chevron U.S.A., Inc. (Chevron) respectfully submits its initial comments in this proceeding. Chevron emphatically agrees with the Secretary of Energy that the timely and orderly interconnection of large loads constitutes an “urgent issue that requires prompt attention.”¹ Chevron encourages the Commission to seize this opportunity to facilitate the expedited interconnection of large loads and generation to support it, including co-located generation. In doing so, the Commission should take a practical approach that avoids disputes over jurisdictional issues or regional variations and that provides regulatory certainty as soon as practicable to support major near-term generation investment decisions.

Chevron is one of the world’s leading integrated energy companies. We believe affordable, reliable and ever cleaner energy is essential to enabling human progress. Chevron is both a large energy user and an energy supplier, with plans to deliver scalable, reliable natural gas-fired projects to serve co-located data centers in the U.S. that will lead speed to market and may have the

¹ *Secretary of Energy’s Direction that the Federal Energy Regulatory Commission Initiate Rulemaking Procedures and Proposal Regarding the Interconnection of Large Loads Pursuant to the Secretary’s Authority Under Section 403 of the Department of Energy Organization Act*, Docket No. RM26-4-000 (Oct. 27, 2025) (Secretary’s Directive).

potential for operational flexibility that could offer the ability to provide essential reliability services to the grid.

I. BACKGROUND

On October 23, 2025, the Secretary of Energy, pursuant to his authority under section 403 of the Department of Energy Organization Act (DOE Act), directed the Commission to initiate rulemaking procedures and consider an advanced notice of proposed rulemaking (ANOPR) to standardize and accelerate “large load” interconnections to the interstate transmission system.² The DOE ANOPR is an appropriate response to the extraordinary growth in U.S. electricity demand “due, in large part to the rapid growth of large loads.”³ It is also consistent with the President’s declaration that the United States is facing a national energy emergency and his prioritization of the development of artificial intelligence (AI), data centers, and new, reliable generation as major components of America’s economic and national security.⁴

Chevron previously urged the Commission in the PJM co-location proceeding to act boldly to eliminate regulatory obstacles and to provide regulatory certainty that would facilitate the kinds of major investments that Chevron is considering.⁵ The DOE ANOPR presents a new opportunity to do so, and the Commission should move quickly to take advantage of it. Simply stated, Chevron wants to invest billions of dollars to build the power generation needed to enable America’s AI

² *Ensuring the Timely and Orderly Interconnection of Large Loads*, Docket No. RM26-4-000 (Oct. 27, 2025) (DOE ANOPR). The DOE ANOPR defines “large loads” as those greater than 20 MW, which is consistent with how the Commission defined large generation resources in Order No. 2003. *Id.* at 1 n.1.

³ DOE ANOPR at P 1.

⁴ *See Unleashing American Energy*, Exec. Order No. 14,154, 90 Fed. Reg. 8,353 (Jan. 20, 2025); *Declaring a National Energy Emergency*, Exec. Order No. 14,156, 90 Fed. Reg. 8,433 (Jan. 20, 2025); *Accelerating Federal Permitting of Data Center Infrastructure*, Exec. Order No. 14,318, 90 Fed. Reg. 35,385 (Jul. 23, 2025); *see also America’s AI Action Plan* (Jul. 2025), <https://www.whitehouse.gov/wp-content/uploads/2025/07/Americas-AI-Action-Plan.pdf>.

⁵ Comments of Chevron U.S.A., Inc., Docket Nos. EL25-49-000 *et al.* (Co-Location Comments).

industry.⁶ But the private sector needs consistent policy frameworks to make large-scale investments at the speed required to meet today’s power needs and to ensure that the United States remains a technological and energy leader.

II. COMMENTS

A. The Commission Should Seize the Opportunity to Provide Clear Regulatory Guidance to Expedite Large Load Interconnections Including Related Co-Location Arrangements

The U.S. power grid is at an inflection point: load is growing at an unprecedented rate⁷—driven by data centers,⁸ growing industrial demands, and increased electrification—as power plant retirements are peaking.⁹ The rapid growth of power demand requires cost-effective, reliable and scalable solutions to enable growth and avoid burdening the existing grid – and the speed and scale of the solutions matters in meeting this power demand growth. Chevron believes that solutions like natural gas-fired power can provide the reliable, lower carbon intensity power needed to fuel American AI innovation.

The DOE ANOPR offers the Commission a roadmap for facilitating the expeditious interconnection of large loads and supporting generation to the interstate transmission system in a way that is wholly consistent with the President’s priorities. Ensuring the timely and orderly

⁶ See 2025 Chevron Investor Day Release at <https://chevroncorp.gcs-web.com/static-files/238611ae-689f-4cc5-a310-c86918a2d6fc5>

⁷ See S&P Global Commodity Insights, *U.S. Nat’l Power Demand Study*, at 15 (Mar. 2025), https://cleanpower.org/wp-content/uploads/gateway/2025/03/US_National_Power_Demand_Study_2025_FINAL.pdf.

⁸ See Dep’t of Energy, *DOE Releases New Report Evaluating Increase in Electricity Demand from Data Centers* (Dec. 20, 2024), <https://www.energy.gov/articles/doe-releases-new-report-evaluating-increase-electricity-demand-data-centers>.

⁹ See U.S. Energy Info. Admin, *Planned retirements of U.S. coal-fired electric-generating capacity to increase in 2025* (Feb. 25, 2025), <https://www.eia.gov/todayinenergy/detail.php?id=64604> (“Electricity generators plan to retire 12.3 gigawatts of capacity in 2025, a 65% increase in retirements compared with 2024.”).

interconnection of large loads, including data centers, is vital for the Nation’s economic and national security; the Commission should seize this opportunity with dispatch.

Specifically, the Commission should move forward with a rulemaking that generally accords with, and further develops, the fourteen principles set forth in the DOE ANOPR. After considering comments on the DOE ANOPR, the Commission should promptly issue a Notice of Proposed Rulemaking (NOPR) that fleshes out DOE’s initial recommendations and includes specific regulatory text. The Commission should set an expedited timetable for NOPR comments and do everything practicable to meet the Secretary’s April 30, 2026, deadline for final action.

In addition, Chevron previously urged the Commission to “take creative and aggressive action to allow new generation resources to quickly reach commercial operations and provide essential reliability services to the grid in addition to energy to the data centers themselves” and “to encourage the development of co-location arrangements.”¹⁰ The DOE ANOPR also expresses support for co-location, which it refers to as “hybrid” arrangements.¹¹ The Commission should ensure that the steps it takes in this proceeding prioritize the development of hybrid arrangements that involve major investments in new generation resources to achieve the maximum electric supply buildout necessary for domestic data centers as soon as practicable.

B. The Commission Should Support Interim Regional Fast Track Interconnection Processes for Large Loads and Co-Located Generation to Support Them

¹⁰ Co-Location Comments at 3.

¹¹ *See, e.g.*, DOE ANOPR at P 12 (“[I]t has become necessary to standardize interconnection procedures and agreements for such loads, including those seeking to share a point of interconnection with new or existing generation facilities (hybrid facilities)”; *id.* at P 20 (“[T]o the extent practicable, load and hybrid facilities should be studied together with generating facilities.”).

In its Co-Location Comments, Chevron urged the Commission to create a separate, expedited co-located load and generation interconnection process.¹² Since April, the Commission accepted temporary “fast-track” proposals—the Expedited Resource Addition Study (ERAS) processes—in both the Southwest Power Pool, Inc. (SPP) and Midcontinent Independent System Operator, Inc. (MISO).¹³ The ERAS orders recognize that urgent near-term resource adequacy and reliability concerns due to load growth, generation retirement, and delays in the interconnection process can warrant expedited interconnection procedures. ERAS provides for an accelerated study of certain interconnection requests to ensure near-term resource adequacy and/or reliability needs.¹⁴ These types of proposals could be models for new fast-track mechanisms to quickly interconnect large loads and related generation. New power generation projects for data centers should not wait years in interconnection queues to reach commercial operations.

Fast-tracking mechanisms are consistent with the DOE ANOPR’s overarching goals as well as DOE’s stated openness to new proposals under section 205 of the Federal Power Act and to hybrid co-location arrangements.¹⁵ SPP recently proposed a High Impact Large Load Generation Assessment (HILLGA) process includes a mechanism for paired large loads and

¹² Co-Location Comments at 5.

¹³ See *Sw. Power Pool, Inc.*, 192 FERC ¶ 61,062 (2025); *Midcontinent Indep. Sys. Operator, Inc.*, 192 FERC ¶ 61,064 (2025).

¹⁴ *Sw. Power Pool, Inc.*, 192 FERC ¶ 61,062 at P 122 (stating that SPP’s proposal would result in a total study period of up to 150 days and that the total interconnection process would last approximately six months); *Midcontinent Indep. Sys. Operator, Inc.*, 192 FERC ¶ 61,064 at P 14 (“[U]nder the Revised ERAS Proposal, MISO proposes to create a quarterly ‘first-come, first-served’ serial study process to facilitate the rapid study of interconnection requests for generating resources that are committed to addressing specific, identified resource adequacy and/or reliability needs, resulting in an [Expedited Generator Interconnection Agreement] within approximately 90 days of study kickoff.”).

¹⁵ DOE ANOPR at 11 (“Third, to the extent practicable, load and hybrid facilities should be studied together with generating facilities. Such an approach will allow for efficient siting of loads and generating facilities and thereby minimize the need for costly network upgrades. For example, siting a large load near or at the same point of interconnection as a new generating facility could reduce the network upgrades needed to interconnect only the load or only the generating facility.”).

generators to interconnect rapidly.¹⁶ It likewise appears that PJM Interconnection, L.L.C. (PJM) may propose a comparable expedited interconnection proposal for paired large loads and generation. The Commission should be open to such regional fast-track proposals, which may provide mechanisms to connect large loads and generation before DOE ANOPR standards can be practicably established in all regions.

C. The Commission Should Allow for Regional Flexibility While Still Requiring Speedy Action

The DOE ANOPR contemplates establishing national large load interconnection standards similar to the generator interconnection standards established under Order Nos. 2003, 845, and 2023.¹⁷ But the Commission’s generation interconnection rules are not identical in all regions. Rather, the Commission has allowed the Independent System Operator/Regional Transmission Organizations (ISO/RTO) regions to adopt “independent entity variations” that better suit region-specific circumstances where the ISO/RTO demonstrates that the proposed variation: (1) is just and reasonable and not unduly discriminatory or preferential; and (2) accomplishes the purposes of the Commission’s generator interconnection requirements.¹⁸

The Commission should take a similar approach with respect to large load interconnections. As the Commission has previously recognized, each ISO/RTO “has different operating characteristics depending on its size and location” and, therefore, should “have

¹⁶ See HILL Filing Letter at 23-38.

¹⁷ See DOE ANOPR at PP 7-11 (discussing the orders’ effect on the standardization of generator interconnection); *id.* at P 12 (recognizing “it has become necessary to standardize interconnection procedures and agreements for such loads, including those seeking to share a point of interconnection with new or existing generation facilities (hybrid facilities)”).

¹⁸ See, e.g., *PJM Interconnection, L.L.C.*, 192 FERC ¶ 61,077 (2025) (granting various independent entity variations in response to PJM’s Order Nos. 2023 and 2023-A compliance filing); *Midcontinent Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,229 (2025) (same); *N.Y. Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,049 (2025) (same).

flexibility to customize its interconnection procedures and agreements to fit regional needs.”¹⁹ Allowing for appropriate flexibility should facilitate the adoption of large load interconnection standards by ensuring that such standards can be efficiently and expediently implemented according to each region’s needs. Preserving flexibility is also consistent with the DOE ANOPR’s statement that it “is not intended in any way to discourage public utilities from making filings to address these and similar issues under [Federal Power Act (FPA)] section 205.”²⁰

D. The Commission Should Seek to Minimize Jurisdictional Conflicts in Order to Facilitate the Timely Adoption of Large Load Interconnection Standards

The FPA authorizes the Commission to regulate “the sale of electric energy at wholesale in interstate commerce,” including both wholesale electricity rates and any rule or practice directly “affecting” such rates.²¹ “The law places beyond the [Commission’s] power, and leaves to the States alone, the regulation of ‘any other sale’—most notably, any retail sale—of electricity.”²²

The DOE ANOPR appears to be intended to stay within the bounds of the Commission’s jurisdiction over interconnections to interstate transmission facilities.²³ Chevron believes that this is a sound approach and recommends that the Commission focus on developing large load

¹⁹ *Standardization of Generator Interconnection Agreements and Procs.*, Order No. 2003, 104 FERC ¶ 61,103, at P 827 (2003).

²⁰ DOE ANOPR at P 32; *see, e.g.*, HILL Filing Letter at 12, 15 (stating that load interconnection studies could be completed within 90 calendar days under SPP’s HILL proposal); *See* PJM, *Executive Summary: PJM Large Load Additions CIFP Stage 4 Package* at 3-4 (Nov. 11, 2025), <https://www.pjm.com/-/media/DotCom/committees-groups/cifp-lla/2025/20251119/20251119-item-02a---pjm-lla-cifp-stage-4-package---executive-summary.pdf> (discussing a proposal to reliably integrate large loads as PJM network load while ensuring resource adequacy). Chevron’s reference to SPP’s and PJM’s proposals should not be construed as endorsement of any of their specific detail. Chevron reserves its rights to comment on all current and future individual large load-related proposals in the appropriate proceedings.

²¹ *FERC v. Elec. Power Supply Ass’n*, 577 U.S. 260, 264 (2016) (citing 16 U.S.C. §§ 824(b), 824c(a)).

²² *Id.* (citing 16 U.S.C. § 824(b)).

²³ *See, e.g.*, DOE ANOPR at P 18 (“[T]o avoid *even arguably* affecting the States’ jurisdiction over generation facilities, facilities used in local distribution or only for the transmission of electric energy in intrastate commerce, or transmissions consumed by the transmitter, the Commission’s jurisdiction should be limited to interconnections directly to transmission facilities, consistent with the Commission’s seven-factor test.”) (emphasis in original).

interconnection standards that do not stretch jurisdictional boundaries. As a practical matter, it would maximize near-term benefits to avoid jurisdictional disputes that would threaten to delay the implementation, and the legal durability, of the Commission’s directives in this proceeding.

Chevron is mindful that state regulators have raised jurisdictional concerns about the DOE ANOPR.²⁴ Chevron takes no position on the potential merits of such concerns at this time but reserves the right to respond in future submissions. States should take comfort from the Commission’s recent order in *Tri-State Generation and Transmission Association, Inc.*, which rejected a proposed “High Impact Load Tariff” on the basis that it impermissibly dictated “the terms and conditions of a [customer’s] retail service in ways that are beyond the Commission’s authority.”²⁵ And the Commission should seek to resolve legitimate state concerns while still taking decisive action within its purview to accelerate large load interconnections.

In that vein, the Commission should seek to coordinate with states on large load interconnection matters, e.g., through the ongoing Federal-State Current Issues Collaborative.²⁶ Chevron has direct experience with the benefits of federal-state cooperation. For example, Chevron owns approximately 1.1 gigawatts of cogeneration in California, connected both in front of the meter and behind the meter, that currently provide essential services to the grid, such as resource adequacy, emergency energy, and ancillary services. The development of these cogeneration assets was facilitated, in part, by the Public Utility Regulatory Policies Act of 1978

²⁴ See, e.g., Nat’l Ass’n of Regul. Util. Comm’rs, Comm. On Elec., *EL-1 Resolution Urging Modification of the Department of Energy’s Proposal for a Federal Energy Regulatory Commission Rulemaking Asserting Jurisdiction Over Large Load Interconnections* (Nov. 10, 2025) (urging “the Federal Energy Regulatory Commission to substantially modify the Department of Energy’s proposed ANOPR to preserve states’ retail regulatory authority under the Federal Power Act, ensure that large load interconnections do not compromise grid reliability or impose undue costs on retail customers, and respect state tools for promoting system flexibility and equitable cost allocation”). {Adopted Nov. 12}.

²⁵ 193 FERC ¶ 61,070, at P 49 (2025).

²⁶ <https://www.ferc.gov/federal-state-current-issues-collaborative>.

(PURPA). The PURPA jurisdictional framework leveraged state regulatory commissions for the implementation and enforcement of PURPA's requirements. PURPA thereby allowed for flexibility in adapting federal standards to local circumstances and needs. The Commission should be open to similar approaches as it works on standards to facilitate the interconnection of large loads. This could include making use of the federal-state joint board mechanism under section 209 of the FPA.

E. The Commission Should Consider Invoking its Reliability Jurisdiction Under Section 215 of the FPA

In its Co-Location Comments, Chevron recommended that the Commission invoke its authority under section 215 of the FPA to “create a separate co-located load interconnection process to expeditiously study and manage the coordinated interconnection of large loads co-located with generation facilities.”²⁷ Although the DOE ANOPR does not reference section 215, the Commission should use its authority under that provision to the full extent that it deems necessary to address large load interconnections. The North American Electric Reliability Corporation has acknowledged the potentially substantial reliability impact of large loads. It recently submitted a report to the Commission explaining how it aims to address the impacts of, and integrate, large loads in reliability planning requirements.²⁸ The breadth of the Commission's jurisdiction under section 215 could be used to reinforce the legal basis of actions that the Commission may take in this proceeding.²⁹

²⁷ Co-Location Comments at 4-5.

²⁸ See *NERC Activities and Plans to Address Reliability Impacts from Large Load Integration*, Docket No. AD25-10-000 (Apr. 17, 2025).

²⁹ See 16 U.S.C. § 824o(b)(1) (stating that the Commission shall have jurisdiction over “all users, owners and operators of the bulk-power system” in the United States, which includes otherwise non-jurisdictional entities such as entities in the Electric Reliability Council of Texas, federal agencies, municipalities, and rural cooperatives).

III. CONCLUSION

The Secretary of Energy has presented the Commission with an unprecedented opportunity to facilitate the speedy interconnection of large loads and supporting co-located generation. The Commission should act quickly, while avoiding distracting jurisdictional disputes with states and accommodating constructive regional proposals. Taking that approach will be most likely to provide regulatory certainty and to encourage large load and electric infrastructure investments that will maximize economic and national security benefits as rapidly as practicable.

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Jay Thompson". The signature is fluid and cursive, with the first name "Jay" and last name "Thompson" clearly distinguishable.

Jay Thompson
Senior Vice President for Federal
Government Affairs
Chevron U.S.A., Inc.
600 13th St NW
Washington, DC 20005
(202) 408-5849
thompsonjr@chevron.com

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